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February 11, 2025

By: Hines of the Senate

and

George of the House

An Act relating to assault and battery; amending 21 O.S. 2021, Section 650, which relates to aggravated assault and battery upon a peace officer; modifying scope of certain unlawful act; defining term; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 650, is amended to read as follows:

Section 650. A. Every person who, without justifiable or excusable cause, knowingly commits any aggravated assault and battery upon the person of a police officer, sheriff, deputy sheriff ~~or~~, highway patrolman, corrections personnel as defined in Section 649 of this title, or any state peace officer employed by any state or federal governmental agency to enforce state laws, while the officer is in the performance of his or her duties shall, upon conviction thereof, be guilty of a felony, ~~which shall be punishable by imprisonment in the custody of the Department of Corrections for~~

1 not more than life ~~or by~~, a fine not exceeding One Thousand Dollars
2 (\$1,000.00), or by both such fine and imprisonment.

3 B. Every person who, without justifiable or excusable cause,
4 commits any aggravated assault and battery upon a person that the
5 violator knows or should reasonably know is a police officer,
6 sheriff, deputy sheriff ~~or~~, highway patrolman, corrections personnel
7 as defined in Section 649 of this title, or any state peace officer
8 employed by any state or federal governmental agency to enforce
9 state laws, that results in maiming as defined in Section 751 of
10 this title, while the officer is in the performance of his or her
11 duties shall, upon conviction, be guilty of a felony punishable by
12 imprisonment in the custody of the Department of Corrections ~~of~~ for
13 not less than five (5) years nor more than life ~~or by~~, a fine not
14 exceeding Five Thousand Dollars (\$5,000.00), or by both such fine
15 and imprisonment.

16 C. For purposes of this section, aggravated assault and battery
17 upon law officers, includes ~~the~~ the:

18 1. The physical contact with and ~~in~~ an attempt to gain control
19 of the firearm; or

20 2. The strangulation,
21 of any police officer, sheriff, deputy sheriff, highway patrolman,
22 corrections personnel as defined in Section 649 of this title, or
23 any peace officer employed by any state or federal governmental
24 agency to enforce state laws.

1 As used in this subsection, "strangulation" shall have the same
2 meaning as provided in subsection J of Section 644 of this title.

3 D. This section shall not supersede any other act or acts, but
4 shall be cumulative thereto.

5 SECTION 2. This act shall become effective November 1, 2025.

6 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
7 February 11, 2025 - DO PASS
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